

TENTATIVE RULING

Counsel and Plaintiff Tokora Tazanek Willform are to appear.

SUNDT CONSTRUCTION, INC. v. NORTHERN CALIFORNIA OFFICERS COMMUNITY dba PARADISE VALLEY ESTATES Case No. FCS059237

GLUMAC's Motions to Compel PERKINS's Further Responses to Form
Interrogatories and Requests for Production

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In two distinct motions Cross-Defendant GLUMAC moves to compel Cross-Defendant PERKINS EASTMAN ARCHITECTS, D.P.C. ("PERKINS") to further respond to GLUMAC's form interrogatories, set one and requests for production, set one.

Timeliness of Motion. GLUMAC filed these motions on May 27, 2026. Per its counsel's declaration, it received PERKINS's allegedly deficient discovery responses on April 8, 2026. (Declaration of Paraskevi M. Batsikas in Support of Motion to Compel Further Responses to Requests for Production ("Batsikas Dec.") at ¶ 5, Exhibit B.) Per Code of Civil Procedure sections 2030.300, subdivision (c) (for interrogatories) and 2031.310, subdivision (c) (for inspection demands) GLUMAC had forty-five days after service of the responses to move to compel further responses. Forty-five days after April 8, 2026 was May 23, 2026, a Saturday. PERKINS served its responses by email, which per Code of Civil Procedure section 1010.6, subdivision (a)(3)(B) extended the deadline to file the motion to compel by two court days. (Batsikas Dec. at ¶ 5, Exhibit B [showing method of response].) Monday, May 25, 2026 being Memorial Day, the deadline was accordingly moved two court days to May 27, 2026. GLUMAC's filings were timely.

Meet and Confer Efforts. The court first considers the adequacy of the moving party's efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. GLUMAC's counsel's attached declaration in support of the motion to compel further responses to requests for production (representative for both motions) states that counsel served the discovery requests at issue on February 4, 2026.

(Batsikas Dec. at ¶ 4.) PERKINS served its responses on April 8, 2026. (*Id.* at ¶ 5, Exhibit B.) GLUMAC sent a meet and confer letter on May 22, 2026. (*Id.* at ¶ 6, Exhibit C.) PERKINS only responded to refuse to agree to an extension of the filing deadline. (*Id.* at ¶ 7, Exhibit D.) The instant motions were, again, filed on May 27, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

GLUMAC did not adequately engage in good faith efforts to meet and confer prior to filing motions to compel. GLUMAC sent its meet and confer letter on Friday, May 22, 2026, right before Memorial Day weekend and with GLUMAC's filing deadline looming that next Wednesday. GLUMAC's letter demanded further responses by May 26, 2026. This was too short a turnaround for a good faith effort to meet and confer. GLUMAC's offer in the letter to accept responses at a later date in exchange for a grant of an extension of GLUMAC's filing deadline does not change the analysis. Further, a single communique is typically insufficient to establish a good faith effort to meet and confer. GLUMAC should have initiated meet and confer efforts sooner than two court days before its filing deadline to enable dialogue. This is particularly so where trial was set for November 2026, emphasizing the need for swift resolution of issues.

Conclusion. GLUMAC's motions to compel further responses are denied.

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